IN THE NATIONAL COMPANY LAW TRIBUNAL

BENGALURU BENCH

CA(CAA)4/BB/2018

Under Sections 230 to 232 of Companies Act, 2013

Order delivered on 2nd March 2018

IN THE MATTER OF SCHEME OF AMALAGAMATION

IN THE MATTER OF

EDVISTA EDUCATION SERVICES PRIVATE LIMITED

WITH

AEON LEARNING PRIVATE LIMITED

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)

Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

1. Edvista Education Services Private Limited
No.301, Third Floor
Fremont Terrace No.3580
14th G Main, 4th Cross
HAL 2nd Stage, Bengaluru – 560 038 - **Applicant / Demerged Company**

2. Aeon Learning Private Limited
No.2561, 16th D Main
HAL 2nd Stage, Indiranagar
Bengaluru – 562 123 - **Applicant / Resulting Company**

For the Applicant(s): J.Sagar Assts.,
Advocates
Representing the Applicant Company

Per: Hon'ble Shri Ashok Kumar Mishra, Member (Technical) - (Author)

Heard on: 06.02.2018, 19.02.2018

ORDER

This Application is filed on behalf of the 1st Applicant-Demerged Company and 2nd Applicant-Resulting Company under Sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromises, Arrangement and Amalgamation) Rules, 2016, to order for dispensation of holding the meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors or alternatively to direct the convening of the

meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors for approving the Scheme of Arrangement of **EDVISTA EDUCATION SERVICES PRIVATE LIMITED** (Demerged Company) to be demerged with **AEON LEARNING PRIVATE LIMITED** (Resulting Company) in terms of Scheme of Amalgamation shown in **Annexure-G.**

The averments made in the Company Application are briefly described hereunder:-

The 1st Applicant Company (Demerged Company) seeks an order for dispensation of holding the meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors or alternatively direct to convening the meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors for approving the Scheme of Arrangement of **EDVISTA EDUCATION SERVICES PRIVATE LIMITED** (1st Applicant/Demerged Company) to be demerged to **AEON LEARNING PRIVATE LIMITED** (2nd Applicant/Resulting Company) in terms of Scheme of Arrangement shown as **Annexure-G.**

It is further averred in the Application that the 1st Applicant/Demerged Company was incorporated on 24th June 2014 under the provisions of the Companies Act, 2013 in the name and style of Edvista Education Services Private Limited bearing CIN No.U80301KA2014PTC075033, having its Registered office at No.301, Third Floor, Fremont Terrace No.3580, 14th G Main, 4th Cross, HAL 2nd Stage, Bengaluru – 560 038.

The main objects of the 1st Applicant-Demerged Company as set out in the Memorandum of Association are:-

i. To run educational institutions, services and to provide infrastructure facilities such as land, building, furniture and other facilities to run educational institutions, schools, academics, colleges for imparting all branches of education both in India and outside India.

ii. To carry on in India or elsewhere the design, development, implementation of software based contents, products and services as technology aids and to provide teaching, education, training of technical and non-technical subject matter to people of all categories and calibre so as to train and orient manpower resource in

the areas relating to computers and other domains and verticals of both Information Technology as well as other sectors including finance, banking, telecom, healthcare, science, engineering, manufacturing, insurance, retail and other related services and products.

It is further stated that, the Board of Directors of the Resulting Company have, in its meeting, held on 20th November 2017, has approved the Scheme of Arrangement. A Copy of the Resolution dated 20th November 2017 passed by the Board of Directors of the Demerged Company is marked as **Annexure- E.**

The Authorised share capital of the 1st Applicant-Demerged Company is Rs.5,00,000/- divided into 5,00,000 Equity Shares of Re.1/- each and Rs.59,06,100/- divided into 59,061 Preference Shares of Rs.100/- each. The issued, subscribed and paid up equity share capital is Rs.1,01,349/- divided into 1,01,349 Equity shares of Re.1/- each and Rs.56,81,900/- divided into 56,819 Preference Shares of Rs.100/- each. A copy of the latest Audited financial statements as on 31st March, 2017 is marked as **Annexure –B.**

The 1st Applicant Company (Demerged Company) seeks an order for dispensation of holding the meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors or alternatively direct to convening the meeting of the Equity shareholders, Unsecured Creditors and Unsecured Trade Creditors for approving the Scheme of Arrangement of **EDVISTA EDUCATION SERVICES PRIVATE LIMITED** (1st Applicant/Demerged Company) to be merged with **AEON LEARNING PRIVATE LIMITED** (2nd Applicant/Resulting Company) in terms of Scheme of Arrangement shown as **Annexure-G.**

It is further averred in the Application that the 2nd Applicant/Resulting Company was incorporated on 26th August 2013 under the provisions of the Companies Act, 2013 in the name and style of Aeon Learning Private Limited bearing CIN No.U80301KA2013PTC070683, having its Registered office at No.2561, 16th D Main, HAL 2nd Stage, Indiranagar, Bengaluru – 560 008, Karnataka, India.

The main objects of the 2nd Applicant-Resulting Company as set out in the Memorandum of Association are:-

(i) To carry the business of imparting Education in India and abroad in the fields of art, commerce, science, business management and all other fields of education by conducting, sponsoring or running training centres, programmes and courses through classroom, online, blended and offline mode.

(ii) To carry on the business of setting up and running schools, colleges, professional colleges, including medical colleges, technical colleges, engineering colleges, business management colleges, teachers training colleges, coaching centres, tuition centres, training centres for vocational, career and personality development and any other field of education and development, to develop and provide curriculum, course contents, teaching modules and render professionalised coaching in such streams and render all types of support services (to universities and educational institutions such as assisting educational institutions and universities in student acquisition, student enrolment and student management services like student counselling and enrolment support, admission processing) and consultancy services for other educational institutions and government departments, through classroom, online, blended and offline mode both within India and abroad.

(iii) To acquire, take on lease, amalgamate, merge or otherwise take ownership of schools, colleges and all types of educational institutions, run and administer the said institutions, both as owners as well as on behalf of others and to carry on such activity both within India and abroad.

It is further stated that, the Board of Directors of the Demerged Company have, in its meeting, held on 20th November 2017, has approved the Scheme of Amalgamation. A Copy of the Resolution dated 20th November 2017 passed by the Board of Directors of the Demerged Company is produced and marked as **Annexure- F.**

The Authorised share capital of the 2nd Applicant-Resulting Company is Rs.6,00,000/- divided into 6,00,000 Equity Shares of Re.1/- each and Rs.10,00,000/- Preference Shares of Re.1/- each. The issued, Subscribed and paid up equity share capital is Rs.4,04,644/- divided into 4,04,644 Equity shares of Re.1/- each and 6,44,904 Preference Shares of Re.1/- each. A copy of the latest Audited financial statements as on 31st March, 2017 is produced marked as **Annexure –D.**

It is submitted that all the shareholders of the 1st Applicant-Demerged Company have consented to the scheme of arrangement and copies of the consent affidavits are produced and marked as **Annexure-A.**

It is further stated in the memo dated 16.02.2018 that as on 30.09.2017, the 1st Applicant- Demerged Company had 12 Unsecured Loan Creditors and 7 Unsecured Trade Creditors. The memo further states that as on 12.01.2018, the 1st Applicant-Demerged Company has paid off 11 out of the 12 Unsecured Loan Creditors and all the Unsecured Trade Creditors in full. A copy of the certificate of the Chartered Accountant certifying the status of payment is produced as **Annexure-B.** Further it is submitted that the unpaid Unsecured Loan Creditor to whom an outstanding amount of Rs.17,05,877/- is pending, has given its consent to the scheme of arrangement. A copy of the affidavit is produced as **Annexure-C.**

The 2nd Applicant-Resulting Company further states that there are nine equity shareholders and a Chartered Accountant has issued a certificate dated 12.12.2017 certifying the details of the equity shareholders. The said certificate is produced as **Annexure-H.** A memo dated 16.02.2018 is filed stating that more than 90% in value of the equity shareholders have given their consent to the scheme through respective affidavits produced as **Annexure-A** series.

It is submitted that the 2nd Applicant-Resulting Company had 46 Unsecured Loan Creditors as on 30.09.2017 and 8 Unsecured Trade Creditors. It is further submitted that the said Unsecured Loan Creditors and Unsecured Trade Creditors are satisfied in full. A certificate from the Chartered Accountant certifying the status of payment is produced and marked as **Annexure-B.**

It is also stated that no investigation or proceedings have been instituted or are pending in relation to the 1st Applicant-Demerged Company or the 2nd Applicant-Resulting Company.

In the light of the above facts stated, the 1st Applicant-Demerged Company and the 2nd Applicant-Resulting Company pray for the following relief:

1. To dispense with convening meetings of the shareholders and creditors of the Demerged Company and the Resulting company for the purpose of considering the proposed Scheme; or

2. Issue directions for convening the meetings of shareholders and/or creditors and appoint a chairman for such meetings.
3. Pass such other orders as are deemed fit and proper in the circumstances of the case.

We have seen the consent affidavits filed by the shareholders of the 1st Applicant-Demerged Company and the 2nd Applicant-Resulting Company and also consent affidavit of the Unsecured Trade Creditor in respect of the 1st Applicant- Demerged Company.

The 1st Applicant-Demerged Company and the 2nd Applicant-Resulting Company are seeking an order to dispense with the holding of meeting of shareholders and unsecured trade creditors of the 1st Applicant-Demerged Company on the ground that the shareholders and the Unsecured Trade Creditor have given their consent by way of affidavits for the proposed scheme of Arrangement.

In the result, the Application is allowed and holding of meeting of shareholders and Unsecured Trade Creditors are dispensed with. In any eventuality when the Applicant Company approaches this Tribunal for seeking approval of the scheme it would be open for any person who is interested in the scheme of Arrangement to put forth their contentions before the Tribunal.

2/3/2018

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

2/3/18

(RATAKONDA MURALI)
MEMBER, JUDICIAL

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NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 02.03.2018.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2. Hon'ble Member(T) **Dr. Ashok Kumar Mishra**

C.P. No. or C.A. No.	T.P. No.	Purpose	Section	Name of the Parties M/s. / Mr.
CA(CAA)No.04/BB / 2018	-	For clarification	230-232	M/s Edvista Education Services Pvt Ltd

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

ORDER

Orders pronounced vide separate order.

Member (T) **Member (J)**